

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Preparation of the 11th Consultation

Combating discrimination in education

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, are aligned with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

2. Scope of the Consultation

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of

Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**¹ (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**², which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**³, and the **Report on the 2022 Transforming Education Summit**⁴ which call for the transformation of education systems to 'include everyone, regardless of circumstance, context or background'. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education⁵ and the Tashkent Declaration on Early Childhood Care and Education.⁶

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO's Constitution states that "*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*". Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

¹ <https://www.unesco.org/en/right-education/evolving>

² <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

³ https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf

⁴ https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf

⁵ [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](https://www.unesco.org/en/marrakech-framework-for-action)

⁶ [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](https://www.unesco.org/en/tashkent-declaration-ecce-2022)

4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**⁷ in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**⁸, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database⁹. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

⁷ <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

⁸ <https://en.unesco.org/education/girls-women-rights>

⁹ [UIS Statistics \(unesco.org\)](https://uis.unesco.org)

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

GENERAL INFORMATION:

Country name: **Czech Republic**

Organization or entity responsible for the preparation of the report:

Ministry of Education, Youth and Sports

Name of contact person:

Email and telephone number of contact person:

I. Ratification and applicability of the Convention against Discrimination in Education¹⁰

- Is your country a State Party to the Convention?

☐ **Yes** The Czech Republic joined the Convention in March 1993.

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☐ **There is interest but no concrete action has been taken**

☐ The ratification process has been initiated

☐ The ratification process is close to completion

- Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

☐ No, not considering ratification. Please explain why:

- Is the Convention directly applicable in your country's domestic law?

☐ Yes ☒ **No**

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?¹¹

¹⁰ <https://www.unesco.org/en/legal-affairs/convention-against-discrimination-education>

¹¹ Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

☐ No

☐ Yes: Have the provisions of the Convention been invoked?

☐ Yes ☐ No

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

*It further corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.¹²*

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☐ Yes ☐ No

- If yes, please provide reference:

Education based on the principle of inclusion and non-discrimination is perceived in the Czech Republic as a basic prerequisite for quality education. As such, the topic is addressed in the Strategy for Education Policy of the Czech Republic until 2030. The topic is also addressed in the Long-Term Plan for the Development of Education and Educational Policy 2023-2027, which is the implementation material of the aforementioned Strategy.

1.1 Non-discrimination and equality in education

¹² Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation¹³, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b¹⁴

☒ Legal texts¹⁵ prohibit discrimination and guarantee equal access to education

☒ In pre-primary education (including early learning and care)

☒ In primary education

☒ In secondary education

☒ In technical and vocational education and training

☒ In higher education

☒ In adult education and alternative learning

- Please indicate the relevant legal provisions:

§1paragraph3ofActNo.198/2009

§2paragraph1lettera)ofActNo.561/2004

Article 1 of Act No. 2/1993

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

In general: due to race, ethnic origin, nationality, gender, sexual orientation, age, disability, religious belief, faith or worldview (§ 2 paragraph 3 of Act No. 198/2009)

regional education: due to race, skin color, sex, language, faith and religion, nationality, ethnic or social origin, property, lineage and state of health or other status of a citizen (§ 2 paragraph 1 letter a) of Act No. 561/ 2004)

☒ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

☒ In pre-primary education (including early learning and care)

☒ In primary education

☒ In secondary education

☒ In technical and vocational education and training

¹³ See: Article/Paragraph 1(1).

¹⁴ Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

¹⁵ Constitution, laws, decrees, regulations, circulars, etc.

☐ In higher education

☐ In adult education and alternative learning

- Please provide details:

Strategic objective 2 (in the Strategy for Education Policy of the Czech Republic until 2030): Reduce inequalities in access to quality education and pave the way for the maximum development of the potential of children, pupils and students.

Examples of specific measures: Comprehensive support for schools in municipalities with a higher proportion of children and pupils at risk of social exclusion, Strengthening of the professional capacity and competence to work with diverse groups of children and pupils, Methodical support of founders in the regulation of catchment areas, Institutionalisation of specialised positions in schools etc.

☐ Combatting discrimination in terms of curriculum:

☐ In pre-primary education (including early learning and care)

☐ In primary education

☐ In secondary education

☐ In technical and vocational education and training

☐ In higher education

☐ In adult education and alternative learning

- Please provide details:

In the **Framework Educational Program for Preschool Education (RVP PV)**, the issue of combating discrimination is addressed through various aspects of educational content and objectives. The main focus is on creating an inclusive environment where every child feels respected and valued.

Key Elements Addressing Anti-Discrimination:

General Educational Goals: The RVP PV aims to develop the personality of each child in social, emotional, cognitive, and physical aspects. One of the primary goals is to foster a sense of respect and understanding for others, which indirectly combats discriminatory attitudes by promoting inclusivity and empathy among children (Revize RVP) .

Key Competencies: Eight key competencies are defined in the RVP PV, including communication, problem-solving, personal and social competence, and civic competence. These competencies emphasize the importance of social skills, mutual respect, and responsible behavior towards others, contributing to an anti-discriminatory approach in preschool education (Revize RVP) .

Educational Areas: The educational content is organized into four areas that collectively support the overall development of the child. These areas encourage activities that promote social interactions, understanding differences, and

cooperation, which are essential for fostering an inclusive and non-discriminatory environment (Revize RVP).

For more detailed information, you can visit the official pages on General Parts and Key Competencies.

In the Framework **Educational Program for Elementary Education** (RVP ZV), the issue of combating discrimination is addressed mainly within the cross-cutting theme "Society for All." This theme focuses on promoting inclusion and equality among students, regardless of their social, cultural, or ethnic background. The goal is to create a school environment where every student feels respected and supported.

The theme includes activities and teaching strategies that help students develop the ability to respect differences between people, support equal opportunities, and fight against all forms of discrimination. It is interconnected with key competencies, such as the competence for citizenship and sustainability, which emphasizes the importance of an active approach to protecting human rights and democratic values.

For more information, visit the official RVP ZV pages:

<https://prohlednout.rvp.cz/>

☐ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

☐ Legislation provides for inclusive education for all

☐ Policy measures aim to enhance inclusion in education for all

☐ Multiple and flexible learning pathways¹⁷ are provided for

☐ Curricula and teaching methods are inclusive in design¹⁸

☐ Multilingual and intercultural education is supported

¹⁷ Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

¹⁸ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

☐ Teachers are trained on inclusive education¹⁶ and to value diversity

☐ Initiatives to address discrimination and promote cultural diversity and mutual acceptance

☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

§ 2 paragraph 1 letter a) of Act No. 561/ 2004 – Education is based on the principles of equal access of every citizen of the Czech Republic or another member state of the European Union to education without any discrimination on the grounds of race, skin colour, sex, language, faith and religion, nationality, ethnic or social origin, property, gender and health status or other status of a citizen, taking into account the educational needs of the individual.

The education of children, pupils and students with special educational needs takes place preferentially in mainstream schools with the use of support measures.

Schools are provided with financial resources for the implementation of support measures (they are provided free of charge to children, pupils and students), they can also draw funds from subsidy calls (call for supporting the participation in preschool education of socially disadvantaged children- <https://msmt.gov.cz/vzdelavani/predskolni-vzdelavani/vyzva-pro-podavani-zadosti-o-poskytnuti-dotace-na-podporu>, call for activities in the field of primary prevention of risky behavior and support of mental health in schools and school facilities - <https://msmt.gov.cz/vzdelavani/socialni-programy/vyzva-pro-podavani-zadosti-o-poskytnuti-dotace-prevence-2024>, etc.) or the Jan Amos Komenský Operational Program <https://opjak.cz/vyzvy/> (https://opjak.cz/vyzvy/vyzva-c-02_23_018-akcni-planovani-v-uzemi-idz/ etc). Methodological support is also provided to schools (for example here: <https://zapojimevsechny.cz/> or here www.edu.cz).

§ 24 paragraph 1 of Act No. 563/ 2004 – Pedagogical workers are obliged to continue their education for the duration of their teaching activities, with which they renew, maintain and supplement their qualifications.

Further education of teaching staff in inclusion and related topics is provided, for example, by the National Pedagogical Institute of the Czech Republic, an organization managed by the Ministry of Education, Youth and Sports <https://www.npi.cz/vzdelavani>.

Free language training is provided to children and pupils with foreign citizenships <https://msmt.gov.cz/vzdelavani/zakladni-vzdelavani/metodicky-material-msmt-k-poskytovani-bezplatne-jazykove>.

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

Residential segregation of poor families is a challenge as this leads to concentration of poor children in limited number of schools which creates challenges to these schools.

In addition municipalities can adjust catchment areas of schools in their municipality which they ran (municipalities ran majority of primary schools). In some municipalities school's catchment areas have been manipulated so that some schools are catchment schools for geographically disunited areas with higher prevalence of poor children. That is segregation in education of poor children is taking place even in municipalities where residential segregation of poor children is not present.

Other relevant general measures, including gender equality

- | | |
|---|--|
| ☐ Legislation provides for gender equality in education | ☐ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education |
| ☐ Policy measures aim to enhance gender equality | ☐ Re-entry programmes for young mothers are provided for |
| ☐ Gender-responsive education sector planning is undertaken | ☐ Ensuring safe and adequate gender-sensitive sanitation facilities ²⁰ |
| ☐ Providing positive or affirmative action measures | ☐ Curricula are rid of all stereotypes ²¹ and bias |
| ☐ Providing financial incentives and fellowships | ☐ Ensuring gender parity in science, technology, engineering and mathematics (STEM) |
| ☐ Teachers are trained (initial and in-service) on gender equality | ☐ Ensuring gender parity in technical and vocational training education and training (TVET) |
| ☐ Teachers are trained to combat stigmatisation ¹⁹ | |
| ☐ Other: | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

¹⁹ ' Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them' (Cambridge Dictionary).

²⁰ ' Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal' (UNGEI blog post, Gender-sensitive sanitation, 2018)

²¹ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).

- Does the legal minimum age for marriage conform to international standards (18 years) ²²:

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☒ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

The court may, in exceptional cases, authorise the marriage of a minor who has not attained full legal capacity and has reached the age of sixteen if there are important reasons to do so.

§ 672 of the Civil Code

National minorities:

For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.

- | | |
|---|---|
| ☒ Legislation provides for the right to education of national minorities | ☒ Teachers are trained on intercultural education |
| ☒ Policy measures aim to enhance the right to education of national minorities | ☒ Teachers are trained to combat stigmatisation ²⁴ |
| ☒ Policy elaboration includes consultations with local communities | ☒ Multilingual and intercultural education are supported |
| ☒ The right to carry out their own educational activities is legally guaranteed for national minorities | ☒ Native language instruction is ensured for national minorities |
| ☒ Educational standards are established for educational institutions run by national minorities | ☒ Adapting curricula and teaching and learning methods to their needs for national minorities |
| ☒ Positive or affirmative action measures are provided for national minorities | ☒ Curricula are rid of all stereotypes ²⁵ and bias |

²² Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practice, para. 20: "a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition."

²⁴ Supra note 15.

²⁵ Supra note 16.

- ☐ Financial incentives and fellowships are provided for national minorities
- ☐ Other²³:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The Education Act provides for the education of members of national minorities in the language of the national minority, in accordance with the rules laid down in the Education Act.

The municipality, region, or ministry, as appropriate, provides education for members of national minorities in the language of the national minority in kindergartens, primary schools, and secondary schools in municipalities in which a committee for national minorities has been established in accordance with a special legal regulation, provided that the conditions laid down in the Education Act are met.

A kindergarten class may be established if at least 8 children with a national minority language enrol in education in the language of a national minority, and a primary school class may be established if at least 10 pupils with a national minority language enrol in education in the language of a national minority; a kindergarten or a primary school with a national minority language may be established provided that all classes are filled on average with at least 12 children or pupils belonging to a national minority per class.

A class of the relevant year of secondary school may be established if at least 12 pupils belonging to a national minority register for education in the language of a national minority; a secondary school with the language of a national minority may be established provided that all classes are filled on average with at least 15 pupils belonging to a national minority.

When organising education in the language of a national minority, municipalities, regions or the Ministry take into account the availability of such education. Education in the language of a national minority may also be provided by a union of municipalities, or municipalities may agree among themselves or with a region on the method of provision, including financing.

If the conditions specified in the preceding paragraphs are not met, the head of the school may, with the consent of the founder, determine in the school's educational programme the subjects or parts thereof in which education is provided bilingually, both in the Czech language and in the language of the national minority.

In the Czech Republic, in accordance with the above-mentioned legal conditions, these schools are established only for the Polish national minority in the Moravian-Silesian Region.

One of the most vulnerable national minorities in the Czech Republic are the Romani, based on Czech Ministry of Education's data there are over 30 thousand Romani pupils in elementary schools. Current and planned public policies and other measures are best described in the [Action Plan on the Execution of the Judgment D.H. and Others v. Czech](#)

[Republic](#) and its annexes. The plan is divided between three sections – reform of the counselling system, ethnic desegregation and support for schools.

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

Attitudes of Czech majority towards national minorities, especially the Romani, are often negative, including the people working in the educational system, which makes any legal and policy measures hard to implement on the practical level.

Indigenous people:

- | | |
|--|--|
| ☐ Legislation provides for the right to education of indigenous people | ☐ Financial incentives and fellowships are provided for indigenous people |
| ☐ Policy measures aim to enhance the right to education of indigenous people | ☐ Teachers are trained on intercultural education |
| ☐ Policy elaboration includes consultations with local communities | ☐ Teachers are trained to combat stigmatisation ²⁶ |
| ☐ The right to carry out their own educational activities is legally guaranteed for indigenous people | ☐ Multilingual and intercultural education are supported |
| ☐ Educational standards are established for educational institutions run by indigenous people | ☐ Native language instruction is ensured |
| ☐ Positive or affirmative action measures are provided for indigenous people | ☐ Adapting curricula and teaching and learning methods to their needs for indigenous people |
| ☐ Other: | ☐ Curricula are rid of all stereotypes ²⁷ and bias |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

²⁶ Supra note 15.
²⁷ Supra note 16.

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations²⁸:

- | | |
|--|---|
| ☐ Legislation provides for their right to education | ☐ Financial incentives and fellowships are provided for |
| ☐ Policy measures aim to enhance their right to education | ☐ Auxiliary assistance is provided |
| ☐ Inclusion in mainstream schools is ensured | ☐ Multiple and flexible learning pathways ³¹ are provided |
| ☐ Positive or affirmative action measures are provided for | ☐ Curricula are rid of all stereotypes ³² and bias |
| ☐ All administrative barriers to access education are removed | ☐ Accelerated learning programmes are provided |
| ☐ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers ²⁹ are provided for | ☐ Non-formal and/or alternative education programmes are provided |
| ☐ Teachers are specifically trained to ensure their inclusion | ☐ Language classes to newcomers are provided for |
| ☐ Teachers are trained to combat stigmatisation ³⁰ | ☐ Multilingualism and intercultural education are encouraged |
| ☐ Other: | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Under the provisions of Section 20 of the Education Act, every foreigner is entitled to free language training for inclusion in basic education.

The National Pedagogical Institute of the Czech Republic, as a directly managed organisation of the Ministry of Education, provides direct support to schools educating foreigners through its regional centres - free interpreting and translation services, support for the positions of adaptation coordinators in schools, methodological support and other activities.

Language support in preschool education

Linguistic preparation of children with insufficient knowledge of Czech has become part of the Framework Educational Programme for Pre-School Education since 1 September 2021 and the Curriculum of Czech as a Second Language for Compulsory Pre-School Education has been prepared.

Language support is provided in pre-school education as part of the regular curriculum, and in kindergartens with a higher proportion of foreigners in compulsory pre-school education,

²⁸ 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

²⁹ While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

³⁰ Supra note 15.

³¹ Supra note 13

³² Supra note 16.

targeted support is also provided in language training groups. The main target group for the provision of language training is foreigners in compulsory pre-school education, regardless of the length of their stay in the Czech Republic. Under certain conditions, children with Czech citizenship or younger foreign children can also be included in a language training group.

Language support in primary education

From 1.9.2021, the revised system support for foreigners in primary schools has been in place. Every foreigner who has been attending compulsory school in the Czech Republic for a maximum of 24 months is entitled to language training. Language training in primary education is provided in schools designated by the region - these are schools established by the local self-government unit and are designated as a rule if they have at least 5% of foreigners in the school or are designated as the only one within the territory of the municipality with extended competence. The scope of language training is 100-400 hours, the group has 2-10 pupils and it is also possible to set up distance groups. Non-entitled pupils (e.g. Czech citizens with insufficient knowledge of the language of instruction) can also participate in language training if they join an existing group. A pupil who participates in language training is automatically released from the lessons he/she misses due to participation in language training. Schools are provided with the Czech as a Second Language Curriculum, including an initial orientation test.

Language training is financed from the budget of the Ministry of Education.

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☒ No

- Please elaborate:

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

People with disabilities:

☒ Legislation provides for their right to education

☒ Policy measures aim to enhance their right to education

☒ Inclusion in mainstream schools is ensured

☒ Special schools are used as resource centers to inclusive schools

☒ Mainstream teachers are specifically trained on disabilities

☒ Teachers are trained to combat stigmatisation³³

☒ Auxiliary assistance is provided

☒ Curricula and teaching and learning methods are adapted

☐ Positive or affirmative action measures are provided

☐ Financial incentives and fellowships are provided

☐ Other

☐ Curricula are rid of all stereotypes³⁴ and bias

☐ Education infrastructure and learning materials are adapted

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- Section 16 of Act No. 561/2004 Collection of Law, on Pre-school, Basic, Secondary, Tertiary Professional and Other Education (the Education Act) guarantees children, pupils and students with special educational needs the right to free provision of support measures by schools and educational institutions.

- In the education of pupils with special educational needs, mainstream teachers receive methodological support from school counselling centres and school counselling teams within schools.

- Teaching staff in state-funded schools have a legal obligation to undertake further training to renew, maintain and develop their qualification while in post, this includes learning about and developing skills in the area of inclusive education.

- The National Pedagogical Institute (NPI) provides support for the development of inclusive education approaches and its implementation in Czech schools through a series of targeted project activities.

- A part of the Czech Republic's Education Policy Strategy 2030 is to strengthen funding for reducing inequalities, including funding for support staff infrastructure for working with pupils and students with special educational needs.

- Conditions for the inclusion of pupils with special educational needs in classes or schools outside the mainstream include a written request from the adult student or the legal representative of the child or student (including their informed consent), a recommendation from the school counselling centre, and compliance with the interests of the child, pupil or student.

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

- Individual school counselling centres do not proceed uniformly in diagnosing special educational needs and setting up support measures. The Ministry is preparing legislative measures to improve monitoring and to ensure the systematic use of up-to-date diagnostic tools to address this situation.

- There are disparities between regions in the availability of services for young people with special educational needs.

- There is a shortage of qualified Special educational needs teachers and school psychologists to meet current needs. The Ministry is negotiating with representatives of universities to increase capacity to drive up the number of special educational needs teaching graduates.

Students from poor households:

- | | |
|--|--|
| ☐ Financial incentives and fellowships for school enrolment are provided | ☐ Teachers are trained to combat stigmatisation ³⁵ |
| ☐ Transport, meals and education material are subsidised or provided free of charge beyond compulsory education | ☐ Curricula are rid of all stereotypes ³⁶ and bias |
| ☐ Positive or affirmative action measures are provided | |
| ☐ Other: | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Transportation is provided for free by some regional authorities and/or municipalities to all children (regardless of family income) younger than 6 years or 15 years.

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

Residential segregation of poor families is a challenge as this leads to concentration of poor children in limited number of schools which creates challenges to these schools.

In addition municipalities can adjust catchment areas of schools in their municipality which they ran (municipalities ran majority of primary schools). In some municipalities school's catchment areas have been manipulated so that some schools are catchment schools for geographically disunited areas with higher prevalence of poor children. That is segregation in education of poor children is taking place even in municipalities where residential segregation of poor children is not present.

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation³⁷ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and

³⁵ Supra note 15.

³⁶ Supra note 16.

³⁷ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.

Education³⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

- Please indicate the measures taken to ensure access to quality ECCE (several items may be ticked):

- | | |
|--|--|
| ☐ Prior to pre-primary education, ECCE services are free | ☐ ECCE services respect a child's need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play. |
| ☒ Prior to pre-primary education, ECCE services are affordable | |
| ☒ ECCE services are accessible on a non-discriminatory basis | |

- Please elaborate further on the measures taken:

Guarantee of a place in kindergarten from the age of three

Act No. 561/2004 Coll. Act on preschool, elementary, secondary, higher vocational and other education (Education Act) 561/2004 Sb. Školský zákon (zakonyprolidi.cz)

§34 paragraph 3: Children who reach at least three years of age before the start of the school year are admitted to a kindergarten established by a municipality or union of municipalities on a priority basis, if they have a place of permanent residence, or, in the case of foreigners, a place of residence in the relevant school district or are placed in a children's home in this district, up to the permitted number of children listed in the school register.

Paid parental leave up to three years of age of the child

In 2024, the allowance is set at 350,000 crowns, which is the total amount that can be used up within 3 years of the child's age.

The possibility of taking care of a child in a children's group

Children's groups are managed by the Ministry of Labor and Social Affairs. They represent regular childcare facilities for children in the age range from one year to the start of compulsory schooling. more information here <https://www.mpsv.cz/documents/20142/577460/DS.pdf/2caaf2ed-8c2c-ff81-b928-272c74fc5116>

- Is compulsory and free of charge pre-primary education available?

- ☒ Pre-primary education is compulsory. Please provide the age of enrolment and duration:

Children who reach the age of five by the first of September of the relevant school year are obliged to enter kindergarten. The compulsory last year of preschool education can be completed in another way, namely by individual education of the child (which takes place without the child's regular daily attendance at kindergarten), education in the preparatory class

of a primary school and in the preparatory class of a special primary school, or education in a foreign school on the territory of the Czech Republic.

The representation of 5–6-year-old children in preschool education is regularly monitored by the Czech School Inspectorate. In the school year 2022/2023, a total of 98.1% of five-year-old children participated in some possible form of compulsory preschool education, while children residing abroad for a long time are not included.

- ☐ Pre-primary education is **not** compulsory.
- ☐ Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

The last year of pre-school education, which is compulsory (see above), is provided free of charge. Parents only pay for the child's meals.

- ☐ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Payment for preschool education in a kindergarten established by the state, region, municipality or association of municipalities is regulated by Decree No. 14/2005 Coll. Decree on preschool education 14/2005 Sb. Vyhláška o předškolním vzdělávání (zakonyprolidi.cz) in § 6

The amount of payment for preschool education is determined by the founder. The director of the kindergarten informs the legal representative about the amount of the payment in an appropriate way. The monthly payment amount may not exceed 8% of the basic minimum wage rate per month, which is valid at the time the monthly payment amount is determined. The payment for the respective school year is determined for all children in the same type of nursery school at the same monthly amount.

He is exempt from payment

- a) the legal representative of a child who receives a recurring dose of aid in material need
- b) the legal representative of a dependent child, if this child is entitled to an increase in the care allowance
- c) the parent who is entitled to an increase in the care allowance due to the care of a dependent child, or
- d) a natural person who personally cares for a child and receives foster care benefits for the purpose of caring for this child if he proves this fact to the director of the kindergarten.

The payment amount is monitored by the Czech School Inspectorate

The average amount of payment for preschool education and school fees in the Czech Republic was CZK 1,147 in the 2022/2023 school year in kindergartens established by various founders. The highest average monthly payment for preschool education was collected from parents at

municipal schools in Prague (CZK 836) and in the Central Bohemian Region (CZK 495). The lowest average monthly wages were paid by parents in the South Bohemian Region (CZK 313) and in the Vysočina Region (CZK 264).

In the private sector, the highest monthly school fees were collected from parents in Prague (CZK 12,139) and in the Central Bohemian Region (CZK 10,463). On the contrary, parents paid the lowest average monthly school fees in the South Bohemian region (CZK 2,092) and in the Hradec Králové region (CZK 1,050).

The implementation of payments related to the education provided while collecting funds from legal representatives was also monitored. The majority of schools used selected funds for smaller-scale events (cinema, theater, exhibitions, excursions, transport, class trips, lectures, and multi-day or regular activities). Only a small percentage of schools used the selected funds for art supplies, other school supplies, or consumables. The vast majority of schools collected up to CZK 2,000 (57.4%) from legal representatives, 7% of schools collected more than CZK 6,000.

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

- ☐ Limited access
- ☐ Issues of equity and inclusion
- ☐ Poor quality programmes
- ☐ Other:
- ☐ Poor learning outcomes
- ☐ Low number of professionally trained educators
- ☐ Lack of support to families

Capacity utilization varies in different regions - see map.

In some regions, there is a problem with placing 3-year-old children in kindergarten. Source: https://www.csicr.cz/CSICR/media/Prilohy/2023_p%c5%99%c3%adlohy/Dokumenty/VZ_2023_e-verze_final.pdf

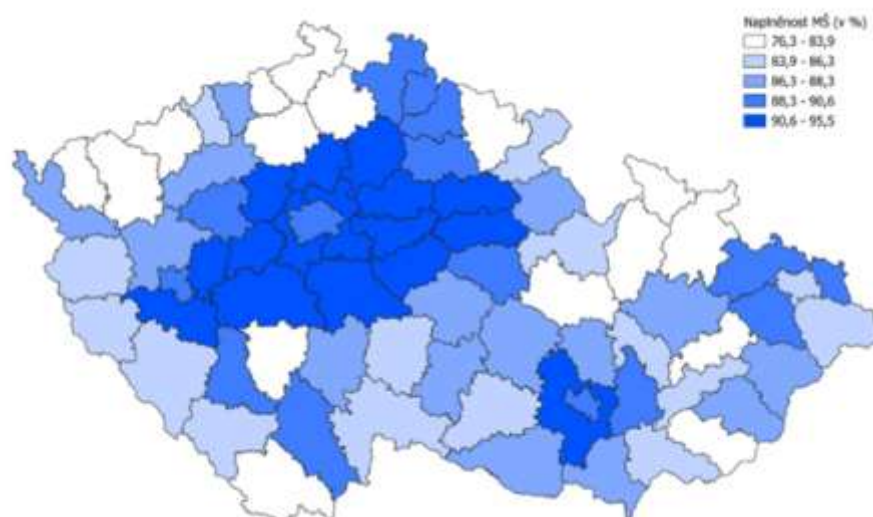
The map shows the capacity utilization of kindergartens, i.e. the share of the total number of children enrolled in kindergartens in a given district on the total

capacity of the respective kindergartens. It can be seen that the capacity utilization of kindergartens varies regionally.

- Please elaborate. Brief quantitative information may be added.

TABULKA 2 Žádosti o přijetí do předškolního vzdělávání				
Sledovaný parametr ČR (statistika MŠMT)	Stav ve školním roce			
	2019/2020	2020/2021	2021/2022	2022/2023
Počet žádostí o přijetí do MŠ	157 872	155 610	171 166	180 688
<i>z toho podíl těch, kterým nebylo vyhověno</i>	23,0	25,0	26,9	27,4
Počet žádostí o přijetí do MŠ, kterým bylo vyhověno	121 595	116 657	125 068	131 223
<i>z toho podíl dětí, které nastoupily</i>	94,6	94,0	92,8	93,0

MAPA 1 | Naplněnost mateřských škol (v %)



Although the capacities of kindergartens are continuously increasing, a high number of applications for the admission of children to preschool education, which were not granted, still persists. In the school year 2022/2023, a total of 180,688 applications were submitted, 49,465 applications were not granted, which represents 27%. Of the total number of applications submitted that were not granted in the catchment areas, 11,088 children (6%) were under the age of 3. However, the number of unsatisfied applications does not necessarily mean that the child is ultimately not placed in kindergarten. Parents submit applications to several kindergartens, and thus the data is distorted. The number of applications that were granted when accepting a child is 9,240 higher than the number of children who eventually entered kindergarten. The proportion of children whose applications were granted, who were admitted to kindergarten and entered it, was 93%.

Source:

https://www.csicr.cz/CSICR/media/Prilohy/2023_p%c5%99%c3%adlohy/Dokumenty/VZ_2023_e-verze_final.pdf

As the Czech School Inspectorate points out in its Annual Reports <https://www.csicr.cz/cz/cz/DOKUMENTY/Vyrocní-zpravy>, one of the barriers complicating children's access to preschool education in our country is the catchment area of kindergartens, which stipulates that priority children with permanent residence in the catchment area of the kindergarten are admitted to the kindergarten. In particular, children from socio-economically disadvantaged families often do not meet this condition, as the family does not have a registered permanent residence in the place where they actually live. Another group of children for whom the condition of permanent residence is limiting are the children of foreigners. At the same time, it is precisely children from socioeconomically disadvantaged families and children with a different mother tongue who usually need an increased level of support in order to compensate for the differences created by social exclusion and the language barrier.

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Please provide the age of enrolment and duration of primary education:

- Is primary education compulsory and free of charge?

- ☐ Primary education is compulsory
- ☐ Primary education is **not** compulsory.
- ☐ Primary education is free of charge.
- ☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

- What challenges were encountered in realizing primary education?

- | | |
|---|--|
| ☐ Limited access | ☐ Poor learning outcomes in: |
| ☐ Issues of equity and inclusion | Foundation literacy |
| ☐ High dropout rates | Numeracy |
| ☐ Poor quality programmes | Social and emotional learning |
| ☐ Other: | Others |
| | ☐ Disparity in learning outcomes |
| | ☐ Low number of professionally trained teachers |

- Please elaborate. Brief quantitative information may be added.

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

School attendance is compulsory for 9 school years (primary education). Primary education is followed by secondary education; the age of enrollment in secondary (secondary) education is 15 years.

- Please provide the age of enrolment and duration of upper secondary education:

The Czech Republic does not have lower and upper secondary education, but:

- a) secondary education (1 to 2 years in full-time education),*
- b) secondary education with an apprenticeship certificate (2 to 3 years in full-time education),*
- c) secondary education with school-leaving examination (4 years in full-time education).*

- Is lower and upper secondary education compulsory and free of charge?

- ☐ Lower secondary education is compulsory.
- ☒ Lower secondary education is not compulsory.
- ☒ Lower secondary education is free of charge.
- ☐ Lower secondary education is **not** free of charge.
- ☐ Upper secondary education is compulsory.
- ☒ Upper secondary education is not compulsory.
- ☒ Upper secondary education is free of charge
- ☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Act No. 561/2004 Coll., on pre-school, primary, secondary, higher vocational and other education, Education Act. Secondary schools established by municipalities, higher self-governing units (regions), the state and churches are free of charge, tuition fees are paid in private schools.

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes o No o

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

The work of minors who have not completed compulsory schooling and have not reached the age of 15 is prohibited. The exceptions are artistic, cultural, advertising or sports activities. Between the ages of 15 and 18, a young person is protected and can only perform work that is suitable for their age (Labor Code 262/2006 Coll., decrees of the Ministry of Health).

- What challenges were encountered in realizing secondary education?

- | | |
|---|--|
| ☐ Limited access | ☐ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☐ Low readiness of primary graduates |
| ☐ High dropout rates | ☐ Low number of professionally trained teachers |
| ☐ Poor quality programmes | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3³⁹, and target 4.4⁴⁰. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular

³⁹ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁴⁰ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

by the progressive introduction of free education". Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (*several items may be ticked*):

- ☐ Higher education is free of charge
- ☐ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)
- ☐ Higher education is accessible through financial incentives and scholarships
- ☐ Higher education is accessible through positive or affirmative action measures
- ☐ Higher education is accessible through credit transfer system between states
- ☐ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).
- ☐ Other:

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

- What challenges were encountered in realizing higher education?

- | | |
|---|---|
| ☐ Limited access | ☐ Low number of professionally trained professors |
| ☐ Issues of equity and inclusion | ☐ Insufficient mechanisms to ensure smooth transition from secondary to tertiary |
| ☐ Poor quality programmes | |
| ☐ Poor learning outcomes | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked):

- ☐ Provision of education for persons who have not received or completed the whole period of their primary education
- ☐ Provision of literacy programmes
- ☐ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)
- ☐ Provision of free of charge learning opportunities
- ☐ Provision of professional training including reskilling and upskilling programmes
- ☐ Recognition, validation and certification of non-formal and informal learning
- ☐ Provision of free of charge career guidance and counselling
- ☐ Lifelong learning entitlements including learning accounts, vouchers, etc.
- ☐ Other:

- Please elaborate further on the measures taken:

- What challenges were encountered in realizing adult learning and education?

- | | |
|---|---|
| ☐ Limited access | ☐ Limited funding |
| ☐ Issues of equity and inclusion | ☐ Poor learning outcomes |
| ☐ Poor quality programmes | ☐ Low number of professionally trained educators |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

- ☐ State monitoring and inspections
- ☐ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☒ Infrastructure
- ☒ Curriculum
- ☒ Student-teacher ratio
- ☐ School fees (if relevant)
- ☐ Other

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

A quality learning environment is essential for learning. We have now worked with the Ministry of the Environment to develop a methodology for decarbonising education infrastructure, which describes how to create a more sustainable and generally more welcoming learning environment. We are also working on a methodology to work with gender diverse and trans children so that schools have the material to help them create safer environments for these children. In undergraduate education, future teachers should also newly learn about appropriate classroom layout for different activities.

Ministry has a host of methodic materials for primary prevention. Their goal is to provide necessary information for teacher and rest of the school staff about various aspects of risk behaviour – from bullying, addiction (substances, cyberspace etc...)

- What challenges were encountered in realizing quality education?

☐ Non-supportive or inadequate learning environments

☐ Violence in schools

☐ Cost of education

☐ Conflicts or crises

☐ Other:

☐ Low quality educational infrastructure and materials

☐ Inadequate parental support to education

☐ Long distances to schools

- Please elaborate. Brief quantitative information may be added.

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

☐ Teacher training is provided without discrimination.

☐ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).

☐ Initial training and continuous professional development are provided.

☐ Minimum standards and qualifications required for the teaching profession.

☐ Measures taken to strengthen the social status and attractiveness of the teaching profession.

☐ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.

☐ Establishment of performance monitoring systems.

☐ Measures taken to increase women in leadership positions in education.

☐ Other:

- Please elaborate on each of the measures taken:

- What challenges were encountered in the education personnel?

- ☐ Shortages of teaching staff
 - ☐ Lack of qualified, trained and motivated teaching staff
 - ☐ Lack of training centres
 - ☐ Other:
- o Low quality educational infrastructure and materials
 - o High student – teacher ratio

- Please elaborate. Brief quantitative information may be added.

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.⁴¹ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

- ☐ Curriculum includes human rights education.
- ☐ Educational and/or extracurricular activities are organized on human rights education.
- ☐ Other:

- Please elaborate on each of the measures taken:

3.4 Non-state actors in education

For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision⁴².

⁴¹ Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

⁴² Private, faith-based, NGOs, community actors.

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

☐ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation⁴³ explicitly apply to non-state educational institutions. [Please specify:](#)

☒ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). [Please specify:](#)

Funding for the development of education provided by the non-profit sector usually includes clauses on how the funding is to be used, with an emphasis on ensuring that all people have access to such education and that there is no discrimination. In general, when planning the development of the non-state sector that provides education, care is taken to ensure that the policies developed are as inclusive as possible and take into account marginalised and vulnerable groups.

☐ Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. [Please specify:](#)

☐ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. [Please specify what is covered:](#)

- ☐ Registration
- ☐ State monitoring and inspections
- ☐ Qualifications of teachers
- ☐ Health and sanitation
- ☐ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☐ Infrastructure
- ☐ Curriculum
- ☐ Student-teacher ratio
- ☐ School fees
- ☐ School closures
- ☐ Other

⁴³ See: Article/Paragraph 1(1).

- Please elaborate:

- What challenges were encountered in non-state education provision?

Non-profit organisations are an important part of the education system in the Czech Republic. The Czech Republic has an extensive system of eco-centres, usually under the umbrella of NGOs, which provide education in sustainability. However, NGOs are also involved in other areas such as global and development education, media education, social inequalities, primary prevention and others. At the same time, we support schools to maintain and cultivate relationships with other surrounding public actors such as parents, municipalities and others as part of a whole-school approach to sustainability.

- | | |
|---|---|
| ☐ Low quality educational infrastructure and materials | ☐ Issues in terms of equity and inclusion |
| ☐ Low number of professionally trained teachers | ☐ Weak government regulatory and monitoring capacity |
| ☐ High student – teacher ratio | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

3.5 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion⁴⁴.

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

- ☒ Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

Act No. 561/2004 Coll., on Pre-school, Basic, Secondary, Tertiary Professional and Other Education (the Education Act) states in Section 3 System of educational programmes. Framework Educational Programmes (RVP) now include the key digital competence, which focuses on the development of digital skills. The incorporation of this new digital competence relates to the revision of the RVP, which takes place in several steps. Education in individual schools and school facilities shall be organized in accordance with School Educational

⁴⁴ Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment.

Programmes (SVP). These programs consider the revisions of the RVP, including the inclusion of digital competence in most educational areas.

☒ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)

The School Connectivity Standard was issued by the Ministry of Education, Youth and Sports for schools. This is a document containing recommendations for schools on how to ensure a good digital infrastructure for schools, including data management and security. More binding rules are introduced for schools directly by their founders (e.g. cities, regional authorities), or schools must comply with generally valid domestic legislation or general EU regulations (e.g. GDPR).

☒ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.

The mandatory framework of education for schools is set in Framework Educational Programmes (RVP), including the inclusion of digital competence in all educational areas, not only in IT.

☒ Measures to remove barriers to accessing digital content⁴⁵, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.

In 2020, schools could use funds to purchase portable mobile technologies to ensure distance learning. Schools purchased technology for students who did not have their own laptops, tablets, webcams and other accessories needed for online learning. A similar intervention to overcome the so-called “digital gap” took place with the use of the National Recovery Plan (the source of funds is the EU) also in the years 2022-2024, when schools could set up a so-called “storage” from which disadvantaged students can borrow a portable mobile digital device to have access to modern resources needed for studying (web content, digital libraries etc.).

☒ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.

With the use of the National Recovery Plan (the source of funds is the EU), teachers can complete training and courses through the National Pedagogical Institute of the Czech Republic (NPI) within the project NPO 3.1 DIGI. As a part of the continuing education of teaching staff in connection with the revision Framework Educational Programmes (RVP) and the definition of a new digital key competence, the courses are focused on concurrent knowledge in the field of IT (including AI, cyberbullying, robotics, cyber prevention, etc.). An innovative two-year qualification course aimed at preparing future school principals is being prepared, in which attention is focused, among other things, on the developing of digital competences. The goal is for the principal to be not only the pedagogical leader of the school, but also to be the key person in the introduction of new technologies. From 2024, training and courses

⁴⁵ Lack of internet connection, basic infrastructure or devices.

will take place over a period of two years not only for school principals, but also for other teaching staff in accordance with the competency framework of DigCompEdu.

☒ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education.

Framework Educational Programs (RVP) introduce the key digital competence in primary and secondary schools, which represents a collective term for digital experience, working with data, orientation in the field of AI, critical thinking, etc. Universities respond to the needs of society and labor market by modifying their study programs. The specific layout of the programs is the responsibility of individual universities.

☒ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.

From the National Recovery Plan (the source of funds is the EU), between the years 2022-2024, schools could draw funds to prevent the digital gap. The aim has been to create a school "storage" with basic portable digital technologies, such as a laptop, tablet or mobile phone, and borrow them to disadvantaged/needy students who have not had their own devices, according to their needs for regular or distance learning.

In 2023, the Ministry of Education, Youth and Sports also issued the School Connectivity Standard, which defines the basic technical criteria for the target state of school network infrastructure and the acceptability of project activities that meet the requirements for schools in the 21st century. Together with this document, three methodological materials for schools were published. In general, the financing of the network infrastructure is primarily handled by the founder of the school.

☒ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

Currently, there is no sustainable funding system that would systematically support schools in the acquisition of IT technologies. In the years 2020, 2022-2024, schools could draw funds from the National Recovery Plan (the source of funds is the EU), but this support for schools to purchase IT technologies ends in 2024. Therefore, the Ministry of Education, Youth and Sports is preparing a Plan for the renewal of the IT technologies and digital infrastructure of schools, which would ensure their stable funding from the national budget for this purpose in the future. Schools can further use the resources of their founders (cities, regional authorities) for the acquisition of IT technologies, or participate in project calls, e.g. OP JAK, IROP.

- Please elaborate on each of the measures taken:

--

- What challenges were encountered in digital education provision (check all that apply)?

- | | |
|---|--|
| ☐ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways
☐ Lack of equity and inclusion in digital learning solutions
☐ inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks
☐ Other: | ☐ Limited access to internet and/or electricity
☐ Limited access to hardware (devices, chargers, etc.)
☐ Difficulty in regulating the use of digital education solutions
☒ Difficulty in sustainably financing digital education solutions at national scale
☐ Lack of digital skills development for meaningful use of digital technology in teaching practice
☒ Disjointed or fragmented solutions that are not centrally systematized or regulated |
|---|--|

The main problem at this moment, which is already being solved, is the lack of a sustainable funding system (underfunding for the renewal and sustainability of IT technologies in schools).

In the years 2020, 2022-2024, schools could draw funds from the National Recovery Plan (the source of funds is the EU), but this support to schools for the purchase of IT technologies ends in 2024. Furthermore, schools receive funding from the state budget, through other non-investment costs, and schools can also receive funding from their founders (cities, regional authorities) for the acquisition of IT technologies, or participate in project calls, e.g. OP JAK, IROP.

The Ministry of Education, Youth and Sports is now preparing a Plan for the renewal of IT technologies and digital infrastructure of schools, which would ensure their stable funding from the state budget for this purpose in the future.

- Please elaborate. Brief quantitative information may be added.

4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):

- ☒ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.
- ☒ Monitoring results are made public. Please provide the link:

<https://www.edu.cz/data/>

- ☐ Monitoring processes are participatory, inclusive and regular.
- ☐ Sector-wide and multisector approach is adopted to education governance.
- ☐ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.
- ☐ The decision-making process for the allocation of resources to education is transparent.
- ☐ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.
- ☐ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- Please elaborate on each of the measures taken:

- What challenges were encountered in terms of governance?

- | | |
|--|---|
| ☐ Budgetary constraints | ☐ Absence of supportive/ inconsistent/obsolete legal and policy environment |
| ☐ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels | ☐ Lack or weakness of monitoring systems – including the lack of reliable data |
| ☐ Poor dialogue with teachers' trade unions | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness

of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- ☒ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other:

11th Consultation on the 1960 Convention and Recommendation against Discrimination in Education

KINDLY NOTE THAT THE PLATFORM WILL CLOSE ON THE 3RD OF JANUARY 2025. Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025) GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION 1. Introduction The Convention against Discrimination in Education ("the Convention") and the Recommendation against Discrimination in Education ("the Recommendation"), adopted by UNESCO's General Conference in 1960, are aligned with UNESCO's constitutional mandate to "advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social". The Convention is the first legally binding international instrument focused on the right to education and the only one exclusively dedicated to it. The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education. Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has

been recognized as a cornerstone of Education 2030 agenda. The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation. 2. Scope of the Consultation Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda. As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets. Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006). In addition, this Consultation is an opportunity to inform the ongoing UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective[1] (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the Report from the International Commission on the Futures of Education[2], which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the Vision Statement of the United Nations Secretary General on Transforming Education[3], and the Report on the 2022 Transforming

Education Summit[4] which call for the transformation of education systems to ‘include everyone, regardless of circumstance, context or background’. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education[5] and the Tashkent Declaration on Early Childhood Care and Education.[6] It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure. Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies. The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4”. Therefore, even if a country is not a State

Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that all UNESCO Member States are expected to submit a national report on the implementation of these instruments in the context of monitoring consultations. 4.

Participation in consultations The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024). The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be participatory. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and civil society organizations and other relevant bodies. The preparation of national reports provides a good opportunity for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices. In the preparation of reports, Member States are encouraged to provide substantive and relevant information in a concise manner. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation. Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex. Country reports submitted for previous consultations can be found on the Observatory on the right to education[7] in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for HerAtlas[8], the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for

Statistics database[9]. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation. 5.

Modalities and structure The Guidelines are structured around three chapters: - The first chapter covers general information on adherence to the Convention. - The second chapter aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4). - The third chapter seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments. With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, two types of guidance are provided: (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant. (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics. [1] <https://www.unesco.org/en/right-education/evolving> [2] <https://unesdoc.unesco.org/ark:/48223/pf0000379707> [3] https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf [4] https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf [5] Marrakech Framework for Action | Institute for Lifelong Learning (unesco.org) [6] Tashkent-declaration-ecce-2022.pdf (unesco.org) [7] <http://www.unesco.org/education/edurights/index.php?action=home&lng=e> [8] <https://en.unesco.org/education/girls-women-rights> [9] UIS Statistics (unesco.org)

GENERAL INFORMATION

Question	Answer
Country name:	Кыргызская Республика
Organization or entity responsible for the preparation of the report:	Отдел международного сотрудничества Министерства Образования и Науки Кыргызской Республики.
Name of contact person:	Специалист отдела международного сотрудничества МОиН КР Тагаев Исфандияр. +996 700 800 787
Email and telephone number of contact person:	Номер телефона: +996(312) 62-15-20 Почта: edu@mail.gov.kg

I. Ratification and applicability of the Convention against Discrimination in Education[1]

[1] <https://www.unesco.org/en/legal-affairs/convention-against-discrimination-education>

Question	Answer
Is your country a State Party to the Convention?	Yes
Does your country plan to ratify this instrument?	
Please indicate the stage of ratification process reached by your country and whether assistance is needed:	
- Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:	
- Please explain why:	
Is the Convention directly applicable in your country 's domestic law ?	Yes
Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education [1]? [1] Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.	No

Question

Answer

Have the provisions of the Convention been invoked ?

- Please cite the case law and jurisprudence.
Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with the respect to the right to education.

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4). 1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation. It further corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5[1]. [1] Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

Question	Answer
Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:	Yes

- If yes, please provide reference:

1.1 Non-discrimination and equality in education Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation [1], and ensure equal access to all levels and types of education (please tick all that apply): For reference: This notably is covered under SDG target 4.1 and partly target 4.b [2]. [1] See: Article/Paragraph 1(1). [2] Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

Question	Answer
Legal texts (Constitution, laws, decrees, regulations, circulars, etc.) prohibit discrimination and guarantee equal access to education	Yes
Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education	Yes
Combatting discrimination in terms of curriculum	
Legal texts[1] prohibit discrimination and guarantee equal access to education: [1] Constitution, laws, decrees, regulations, circulars, etc.	
In pre-primary education (including early learning and care)	
In primary education	Yes
In secondary education	Yes
In technical and vocational education and training	Yes
In higher education	Yes
In adult education and alternative learning	
- Please indicate the relevant legal provisions:	
- Please list the prohibited grounds of discrimination in education as laid out in legal texts:	

Question	Answer
----------	--------

Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education:

In pre-primary education (including early learning and care)

In primary education

In secondary education

In technical and vocational education and training

In higher education

In adult education and alternative learning

- Please provide details:

Combatting discrimination in terms of curriculum:

In pre-primary education (including early learning and care)

In primary education

In secondary education

In technical and vocational education and training

In higher education

In adult education and alternative learning

Question	Answer
- Please provide details:	
Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:	
1.2. Equality of opportunities and inclusion in education Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (several items may be ticked): General measures:	
Legislation provides for inclusive education for all	Yes
Policy measures aim to enhance inclusion in education for all	
Teachers are trained on inclusive education and to value diversity	Yes
Initiatives to address discrimination and promote cultural diversity and mutual acceptance	
Multiple and flexible learning pathways are provided for	
Curricula and teaching methods are inclusive in design	Yes

Question	Answer
Multilingual and intercultural education is supported	
Other	
- Please elaborate and, where appropriate, indicate the legal and policy measures taken:	
- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.	
Other relevant general measures, including gender equality	
Legislation provides for gender equality in education	Yes
Policy measures aim to enhance gender equality	Yes
Gender-responsive education sector planning is undertaken	
Providing positive or affirmative action measures	
Providing financial incentives and fellowships	
Teachers are trained (initial and in-service) on gender equality	

Question	Answer
Teachers are trained to combat stigmatisation	
All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education	
Re-entry programmes for young mothers are provided for	
Ensuring safe and adequate gender-sensitive sanitation facilities	
Curricula are rid of all stereotypes and bias	
Ensuring gender parity in science, technology, engineering and mathematics (STEM)	Yes
Ensuring gender parity in technical and vocational training education and training (TVET)	
Other	
- Please elaborate and, where appropriate, indicate the legal and policy measures taken:	
What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.	

Question	Answer
Does the legal minimum age for marriage conform to international standards (18 years) [1]: Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married. [1] Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practice, para. 20: "a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition." - Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:	Yes

Question	Answer
National minorities: For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. For 'others', please see: UNESCO report 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.	
Legislation provides for the right to education of national minorities	Yes
Policy measures aim to enhance the right to education of national minorities	Yes
Policy elaboration includes consultations with local communities	Yes
The right to carry out their own educational activities is legally guaranteed for national minorities	Yes
Educational standards are established for educational institutions run by national minorities	Yes
Positive or affirmative action measures are provided for national minorities	Yes
Financial incentives and fellowships are provided for national minorities	Yes
Teachers are trained on intercultural education	Yes

Question	Answer
Teachers are trained to combat stigmatisation	Yes
Multilingual and intercultural education are supported	Yes
Native language instruction is ensured for national minorities	Yes
Adapting curricula and teaching and learning methods to their needs for national minorities	Yes
Curricula are rid of all stereotypes and bias	Yes
Other	
- Please elaborate and, where appropriate, indicate the legal and policy measures taken:	
- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.	
Indigenous people:	
Legislation provides for the right to education of indigenous people	
Policy measures aim to enhance the right to education of indigenous people	Yes
Policy elaboration includes consultations with local communities	Yes

Question	Answer
The right to carry out their own educational activities is legally guaranteed for indigenous people	Yes
Educational standards are established for educational institutions run by indigenous people	Yes
Positive or affirmative action measures are provided for indigenous people	Yes
Financial incentives and fellowships are provided for indigenous people	Yes
Teachers are trained on intercultural education	Yes
Teachers are trained to combat stigmatisation	Yes
Multilingual and intercultural education are supported	Yes
Native language instruction is ensured	Yes
Adapting curricula and teaching and learning methods to their needs for indigenous people	Yes
Curricula are rid of all stereotypes and bias	
Other	
- Please elaborate and, where appropriate, indicate the legal and policy measures taken:	

Question	Answer
- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.	
People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations[1]. [1] 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' (UNESCO report: The impact of climate displacement on the right to education, 2020, p. 2).	
Legislation provides for their right to education	Yes
Policy measures aim to enhance their right to education	Yes
Inclusion in mainstream schools is ensured	Yes
Positive or affirmative action measures are provided for	Yes
All administrative barriers to access education are removed	Yes
Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers are provided for	Yes

Question	Answer
Teachers are specifically trained to ensure their inclusion	Yes
Teachers are trained to combat stigmatisation	Yes
Financial incentives and fellowships are provided for	Yes
Auxiliary assistance is provided	Yes
Multiple and flexible learning pathways are provided	Yes
Curricula are rid of all stereotypes and bias	Yes
Accelerated learning programmes are provided	Yes
Non-formal and/or alternative education programmes are provided	Yes
Language classes to newcomers are provided for	Yes
Multilingualism and intercultural education are encouraged	Yes
Other	
- Please elaborate and, where appropriate, indicate the legal and policy measures taken:	
- Have specific measures been adopted for climate displaced persons?	No

Question	Answer
- Please elaborate	
- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.	
People with disabilities:	
Legislation provides for their right to education	Yes
Policy measures aim to enhance their right to education	Yes
Inclusion in mainstream schools is ensured	Yes
Special schools are used as resource centers to inclusive schools	
Positive or affirmative action measures are provided	
Financial incentives and fellowships are provided	
Mainstream teachers are specifically trained on disabilities	
Teachers are trained to combat stigmatisation	
Auxiliary assistance is provided	

Question	Answer
Curricula and teaching and learning methods are adapted	
Curricula are rid of all stereotypes and bias	
Education infrastructure and learning materials are adapted	
Other	
- Please elaborate and, where appropriate, indicate the legal and policy measures taken:	
- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.	
Students from poor households:	
Financial incentives and fellowships for school enrolment are provided	Yes
Transport, meals and education material are subsidised or provided free of charge beyond compulsory education	Yes
Positive or affirmative action measures are provided	Yes
Teachers are trained to combat stigmatisation	Yes
Curricula are rid of all stereotypes and bias	Yes
Other	

Question

Answer

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

2. Progress made with respect to implementing the right to education across all levels and forms of education

Question	Answer
2.1 Early childhood care and education For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized "the right to education during early childhood as beginning at birth" (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation[1] and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education[2]. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to "the provision of at least one year of free and compulsory pre-primary education". - Please indicate the measures taken to ensure access to quality ECCE (several items may be ticked): [1] Which states that "ECCE is part of the right to education and the main foundation for holistic human development". [2] Which commits states to "Enhance policy and legal frameworks to ensure that the right to education includes ECCE"	
Prior to pre-primary education, ECCE services are free	Yes

Question	Answer
Prior to pre-primary education, ECCE services are affordable	Yes
ECCE services are accessible on a non-discriminatory basis	Yes
ECCE services respect a child's need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play.	Yes
- Please elaborate further on the measures taken:	
Is compulsory and free of charge pre-primary education available?	
Pre-primary education is compulsory.	Yes
Pre-primary education is not compulsory.	Yes
Pre-primary education is free of charge for all.	Yes
Pre-primary education is not free.	
- Pre-primary education is compulsory. Please provide the age of enrolment and duration:	
- Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:	

Question	Answer
- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.	
- What challenges were encountered in realizing early childhood care and education and pre-primary education?	
Limited access	Yes
Issues of equity and inclusion	Yes
Poor quality programmes	Yes
Poor learning outcomes	Yes
Low number of professionally trained educators	Yes
Lack of support to families	Yes
Other	
- Please elaborate. Brief quantitative information may be added.	

Question	Answer
2.2 Primary and secondary education For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.” Primary education - Please provide the age of enrolment and duration of primary education:	
- Is primary education compulsory and free of charge?	
Primary education is compulsory	Yes
Primary education is not compulsory.	
Primary education is free of charge.	Yes
Primary education is not free.	
- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.	
- What challenges were encountered in realizing primary education?	
Limited access	Yes

Question	Answer
Issues of equity and inclusion	Yes
High dropout rates	
Poor quality programmes	
Poor learning outcomes in foundation literacy	
Poor learning outcomes in numeracy	
Poor learning outcomes in social and emotional learning	
Other poor learning outcomes	
Disparity in learning outcomes	
Low number of professionally trained teachers	
- Please elaborate. Brief quantitative information may be added.	
Secondary education In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training. - Please provide the age of enrolment and duration of lower secondary education:	
- Please provide the age of enrolment and duration of upper secondary education:	

Question	Answer
- Is lower and upper secondary education compulsory and free of charge?	
Lower secondary education is compulsory.	Yes
Lower secondary education is not compulsory.	
Lower secondary education is free of charge.	Yes
Lower secondary education is not free of charge.	
Upper secondary education is compulsory.	Yes
Upper secondary education is not compulsory.	
Upper secondary education is free of charge	
Upper secondary education is not free of charge.	
- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.	

Question	Answer
- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education: For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.	Yes
- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:	
- What challenges were encountered in realizing secondary education?	
Limited access	Yes
Issues of equity and inclusion	Yes
High dropout rates	Yes
Poor quality programmes	Yes
Poor learning outcomes	
Low readiness of primary graduates	

Question	Answer
Low number of professionally trained teachers	Yes
Other	
- Please elaborate. Brief quantitative information may be added.	

Question	Answer
2.3 Higher education For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3[1], and target 4.4[2]. Article 4 of the Convention requires states to make "higher education equally accessible to all on the basis of individual capacity". Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by "every appropriate means, and in particular by the progressive introduction of free education". Higher education includes technical and vocational education and training. - Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items may be ticked): [1] Which calls on states to "ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university". [2] Which recommends to "substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship".	
Higher education is free of charge	Yes

Question	Answer
Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)	Yes
Higher education is accessible through financial incentives and scholarships	Yes
Higher education is accessible through positive or affirmative action measures	Yes
Higher education is accessible through credit transfer system between states	
Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).	Yes
Other	
- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added. - What challenges were encountered in realizing higher education?	
Limited access	Yes

Question	Answer
Issues of equity and inclusion	Yes
Poor quality programmes	
Poor learning outcomes	
Low number of professionally trained professors	
Insufficient mechanisms to ensure smooth transition from secondary to tertiary	
Other	
- Please elaborate. Brief quantitative information may be added.	

Question	Answer
2.4 Adult education and alternative learning For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.” - Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (several items may be ticked):	
Provision of education for persons who have not received or completed the whole period of their primary education	Yes
Provision of literacy programmes	Yes
Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)	Yes
Provision of free of charge learning opportunities	Yes

Question	Answer
Provision of professional training including reskilling and upskilling programmes	Yes
Recognition, validation and certification of non-formal and informal learning	Yes
Provision of free of charge career guidance and counselling	Yes
Lifelong learning entitlements including learning accounts, vouchers, etc.	
Other	
- Please elaborate further on the measures taken:	
- What challenges were encountered in realizing adult learning and education?	
Limited access	Yes
Issues of equity and inclusion	Yes
Poor quality programmes	Yes
Limited funding	Yes
Poor learning outcomes	Yes
Low number of professionally trained educators	Yes
Other	

Question	Answer
----------	--------

- Please elaborate. Brief quantitative information may be added.

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

Question	Answer
3.1 General measures - Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:	
State monitoring and inspections	Yes
Health and sanitation	Yes
Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))	Yes
Infrastructure	Yes
Curriculum	Yes
Student-teacher ratio	Yes
School fees (if relevant)	Yes
Other	
- Please elaborate on each of the measures taken:	

Question	Answer
- What challenges were encountered in realizing quality education?	
Non-supportive or inadequate learning environments	Yes
Violence in schools	Yes
Cost of education	Yes
Conflicts or crises	Yes
Low quality educational infrastructure and materials	Yes
Inadequate parental support to education	Yes
Long distances to schools	Yes
Other	
- Please elaborate. Brief quantitative information may be added.	

Question	Answer
3.2 ☐☐☐☐ Education personnel For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”. - Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):	
Teacher training is provided without discrimination.	Yes
Teachers’ average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).	Yes
Initial training and continuous professional development are provided.	Yes
Minimum standards and qualifications required for the teaching profession.	Yes
Measures taken to strengthen the social status and attractiveness of the teaching profession.	Yes
Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.	Yes

Question	Answer
Establishment of performance monitoring systems.	Yes
Measures taken to increase women in leadership positions in education.	Yes
Other	
- Please elaborate on each of the measures taken:	
- What challenges were encountered in the education personnel?	
Shortages of teaching staff	Yes
Lack of qualified, trained and motivated teaching staff	Yes
Lack of training centres	Yes
Low quality educational infrastructure and materials	Yes
High student – teacher ratio	Yes
- Please elaborate. Brief quantitative information may be added.	

Question	Answer
3.3 Respect for human rights and fundamental freedoms For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.[1] Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1. - Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked): [1] Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.	
Curriculum includes human rights education.	Yes

Question	Answer
Educational and/or extracurricular activities are organized on human rights education.	Yes
Other	
- Please elaborate on each of the measures taken:	
3.4 Non-state actors in education For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision[1]. - Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked): [1] Private, faith-based, NGOs, community actors.□□□□□	
Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation explicitly apply to non-state educational institutions. Please specify:	Yes
Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). Please specify:	Yes
Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. Please specify:	Yes

Question	Answer
Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. Please specify what is covered:	Yes
Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. Please specify what is covered:	
Registration	Yes
State monitoring and inspections	Yes
Qualifications of teachers	Yes
Health and sanitation	Yes
Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools)	Yes
Infrastructure	Yes
Curriculum	Yes
Student-teacher ratio	Yes
School fees	Yes
School closures	Yes
Other	

Question	Answer
- Please elaborate:	
- What challenges were encountered in non-state education provision?	
Low quality educational infrastructure and materials	Yes
Low number of professionally trained teachers	Yes
High student – teacher ratio	Yes
Issues in terms of equity and inclusion	Yes
Weak government regulatory and monitoring capacity	Yes
Other	
- Please elaborate. Brief quantitative information may be added.	

3.5 Digital education Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion[1]. - Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked): [1] Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment.

Question	Answer
Digital technology use in education is provided for in the legal framework.	Yes
Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)	Yes
Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.	Yes
Measures to remove barriers to accessing digital content , including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.	Yes
Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.	Yes

Question	Answer
Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education	Yes
Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.	Yes
A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.	Yes
- Please elaborate on each of the measures taken: Digital technology use in education is provided for in the legal framework. - Please indicate the relevant text and provisions: - What challenges were encountered in digital education provision (check all that apply)?	
Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways	Yes
Lack of equity and inclusion in digital learning solutions	Yes

Question	Answer
Inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks	Yes
Limited access to internet and/or electricity	Yes
Limited access to hardware (devices, chargers, etc.)	Yes
Difficulty in regulating the use of digital education solutions	Yes
Difficulty in sustainably financing digital education solutions at national scale	Yes
Lack of digital skills development for meaningful use of digital technology in teaching practice	Yes
Disjointed or fragmented solutions that are not centrally systematized or regulated	Yes
Other	

- Please elaborate. Brief quantitative information may be added.

4. Strengthening governance systems

For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).

Question	Answer
- Please indicate the measures taken in terms of governance (several items may be ticked):	
Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.	Yes
Monitoring results are made public	Yes
Monitoring processes are participatory, inclusive and regular.	Yes
Sector-wide and multisector approach is adopted to education governance.	Yes
Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.	Yes
The decision-making process for the allocation of resources to education is transparent.	Yes
Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.	Yes

Question	Answer
There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.	Yes
- Please elaborate. Brief quantitative information may be added.	
Monitoring results are made public. Please provide the link:	
- What challenges were encountered in terms of governance?	
Budgetary constraints	Yes
Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels	Yes
Poor dialogue with teachers' trade unions	Yes
Absence of supportive/ inconsistent/obsolete legal and policy environment	Yes
Lack or weakness of monitoring systems – including the lack of reliable data	Yes
Other	
- Please elaborate. Brief quantitative information may be added.	

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

Question	Answer
- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)	
Translation of the Convention/Recommendation into the national and possibly local languages	Yes
Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources	Yes
Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments	Yes
Other	